



TERMS OF SERVICE

CB Works

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Website Hosting & Maintenance Terms

These terms form part of the Hosting Agreement. By signing the Hosting Agreement & Acceptance page, the client confirms that they have read and agreed to the terms outlined below.

Hosting & Technology

CB Works will host the client’s website under the selected hosting package. The website is hosted through Netlify, with website content and media managed through DatoCMS. The website code is stored in a GitHub repository. Hosting includes the live website environment, connection to the CMS, uptime monitoring, SSL security, essential platform maintenance and email-based support. Each package is subject to the bandwidth, storage and CMS user limits shown in the handover document or hosting plan.

The website may also rely on third-party services such as domain providers, analytics tools, forms, plugins, APIs and embedded media. These services are subject to their own pricing, limits, terms and availability.

Security & Access

The website will be served securely over HTTPS using an SSL certificate provided through the hosting platform.

CB Works will take reasonable steps to keep the hosting setup secure and maintained. However, no website or online service can be guaranteed to be completely secure. The client is responsible for keeping account details and passwords secure, limiting access to trusted users, removing access when it is no longer required and only sharing access to trusted users.

CB Works is not responsible for security issues caused by shared or weak passwords, unauthorised users or changes made by the client or another provider.

Content Management

The client will be given access to a headless CMS to manage website content.

The client is responsible for all content uploaded, edited or published through the CMS. This includes ensuring that content is accurate, lawful, up to date and does not breach copyright or the rights of another person or business.

CB Works is not responsible for errors, claims, copyright issues or other problems caused by content published by the client or its authorised users.

Content entry, copywriting and ongoing content updates are not included unless agreed separately.

Maintenance & Support

Hosting includes essential maintenance required to keep the existing website operating on its current platform. This may include hosting configuration, deployment maintenance, minor compatibility updates and assistance with CMS or publishing issues.

CB Works will aim to acknowledge support requests within one business day. Resolution times will depend on the issue and whether a third-party provider is involved.

Hosting does not include redesigns, new pages, new functionality, major platform upgrades, SEO campaigns, marketing, third-party subscription fees, domain renewals, business email support or work required because of changes made by another developer.

Any work outside the hosting package will be quoted separately and billed at an ad hoc rate.

Availability & Third-Party Outages

The client understands that the website relies on third-party services, including Netlify, DatoCMS, domain providers and other external platforms.

These services may experience outages, maintenance, security incidents, performance problems or changes to their products, pricing and usage limits.

CB Works will take reasonable steps to investigate website outages and assist with restoring the service. However, CB Works cannot guarantee that the website will always be available or operate without interruption.

To the extent permitted by law, CB Works is not responsible for lost sales, enquiries, income or other business loss caused by third-party outages, internet failures, DNS issues, expired domains, client actions or events outside the reasonable control of CB Works. Nothing in these terms removes any rights that cannot legally be excluded.

Client Responsibilities

The client is responsible for:

- Paying hosting invoices by their due date
- Keeping billing and contact details current
- Maintaining and renewing the website domain
- Keeping CMS and account access secure
- Ensuring website content is accurate and lawful
- Maintaining any required privacy policy, consent wording or legal notices
- Paying for external services or subscriptions connected to the website

Unless agreed separately, CB Works is not responsible for the client’s domain registration, business email, internal IT systems or use of information collected through website forms.

Backups & Recovery

Netlify, DatoCMS and other platforms may maintain their own system backups. These should not be treated as a permanent or guaranteed archive.

CB Works does not guarantee that deleted or overwritten content can always be recovered. Where possible, CB Works may assist with recovery, although additional work may be quoted separately.

The client should retain copies of important content, images and business records outside the CMS.

Payments & Suspension

Hosting is billed monthly or annually from the website launch date or another agreed start date.

If payment becomes overdue, CB Works will contact the client and provide an opportunity to resolve the issue.

If payment remains outstanding for more than 14 days after written notice, CB Works may pause the website and related services until all outstanding amounts have been paid.

CB Works is not responsible for downtime or business loss caused by hosting being paused due to unpaid invoices.

Cancellation & Handover

The client may cancel hosting by providing 30 days’ written notice. Monthly hosting will continue during the notice period, and annual hosting payments are generally not refundable.

All outstanding invoices must be paid before the website is transferred.

To move the website away from CB Works hosting, the client will need to create:

- A Netlify account
- A DatoCMS account

The client must provide CB Works with access to these accounts so the website hosting, CMS and code repository can be transferred where supported by the platforms.

Up to one hour of standard transfer assistance is included. Additional migration work, DNS changes, troubleshooting or redevelopment will be quoted separately. Once transferred, the client becomes responsible for all hosting costs, security, maintenance, platform updates, account access and technical support.

Changes to the Service

CB Works may update its hosting packages, inclusions or pricing to reflect changes in platform costs, exchange rates, website usage or the level of support required.

At least 30 days’ notice will be provided before a material pricing change takes effect. The client may cancel the hosting service before the new price begins.

CB Works may also pause or end the service where the website presents an urgent security or legal risk, is used for unlawful activity or the client seriously breaches these terms.